

3.	25CV3235	SYNCHRONY BANK VS. DAVID CRAMER
Motion for Sanctions		

Defendant filed a Motin to Quash on January 12, 2026. On April 3, 2026 the court heard Defendant's motion which was denied. Defendant now files this motion for sanctions based on the same claim that service was fraudulent and/or was not proper in some manner. Defendant requests the court 1) issue a warrant for the arrest of the process server for perjury and 2) Sanction Plaintiff for the claimed unlawful process.

The court has no authority to issue a warrant for arrest for perjury. Prosecutorial decision making rests with the District Attorney in each county. The court authorizes arrest warrants for charges on the request of the District Attorney but has no independent prosecutorial powers. As such, the court denes the first request for relief.

Defendant further requests sanctions against Plaintiff for the manner of process. As the court has previously addressed the Defendant's motion regarding the validity of service and denied the motion to quash, that issue has been resolved and cannot form a basis for sanctions. The court thus denies Defendant's second request for relief.

TENTATIVE RULING #3: THE MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.